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This publication supplements Department of the Air Force Manual (DAFMAN) 31-103 Volume 1, *Law Enforcement Operations,* and is supplemented as follows. This supplement provides additional installation unique requirements pertaining to Law Enforcement Operations, use of the National Crime Information Center (NCIC) terminals, distribution and control of the Security Forces Blotter, AFJIS reports and other official documents, detainment and release of civilian and military offenders, and established local procedures to meet DAF requirements. This publication applies to the 377th Air Base Wing (ABW), associate units and active duty personnel. This publication does not apply to the Air National Guard or Air Force Reserve Command unless these components are operating under the command of the 377th ABW or specific guidance has been implemented for their agencies. Failure to comply with the publication is punishable as a violation of Article 92, of the Uniform Code of Military Justice (UCMJ). This publication may be supplemented at any level, but all direct supplements must be routed to the Office of Primary Responsibility (OPR) of this publication for coordination prior to certification and approval. Refer recommended changes about this publication to the OPR using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through the appropriate functional's chain of command. Requests for waivers must be submitted through chain of command to the OPR listed above for consideration and approval. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). The use of the

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SUMMARY OF CHANGES

This supplication has been revised and must be reviewed in its entirety. Updated SF Blotter distribution requirements. Additionally, many offices were delegated various authorities and responsibilities.

2.1.2.1. **(Added)** Within its confines, Kirtland AFB has EXCLUSIVE (see **para 2.1.3.4.1**) jurisdiction over offenses with minor exceptions. Refer to the installation generated jurisdiction map for detailed information.

2.1.2.2. **(Added)** Civilians (both Base Affiliated/BA and Non-Base Affiliated/NBA) will generally be cited for criminal infractions under the Assimilative Crimes Act (see **para 2.4.3.3**) for Misdemeanor offenses. Coordination with the Assistant US Attorney/AUSA must be accomplished PRIOR to detaining/transporting suspects for Felony-level offenses.

2.4.5.1. **(Added)** All persons involved in a reportable incident, regardless of status (Military or Civilian) will be indexed in DCII. As an administrative function, titling/indexing in DCII does NOT equate to an arrest for civilian offenders.

2.5.4. Information on the AF Form 178 will be briefed verbatim to the coordinating SJA. Patrolmen will ensure the probable cause statement includes all elements of the offense (for each offense if more than one) before contacting SJA. If offenses are dropped/changed following coordination, a new AF Form 178 will be accomplished. The original AF Form 178 will be retained for reference until the case is finalized.

3.2.1. **(Added)** UAMs for 377 SFS will be distributed as follows: S2I/Primary and Alternate, S2R/Alternate, S3O/Primary and Alternate. Additionally, the Chief/S2 and Chief S2R will be appointed as 377 SFG/Primary and Alternate. This gives adequate coverage for shortfalls due to OPSTEMPO, Leave, or TDY.

3.2.2. **(Added)** S3 Law and Order Operations will manage DD Forms 2875 and User Rules of Behavior (UROB) for flight personnel and ensure compliance.

3.4.1.1. **(Added)** The Lead Detective and/or NCOIC, 377th Security Forces Squadron Investigations Section (377 SFS/S2I) will serve as the 377th Security Forces Group (SFG) Primary Terminal Agency Coordinator (TAC) for the New Mexico Law Enforcement Terminal System (NMLETS) and the National Law Enforcement Terminal System (NLETS). The 377th Security Forces Squadron Reports and Analysis (377 SFS/S2R) supervisor will serve as the alternate TAC for the New Mexico Law Enforcement Terminal System (NMLETS), National Law Enforcement Terminal System (NLETS) and the primary focal point for the for the DAF NCIC program. The information derived from the Air Force Law Enforcement Terminal System (AFLETS)/NMLETS/NCIC Terminals are classified Controlled Unclassified Information (CUI) and Law Enforcement Sensitive (LES) information that must be safeguarded at all times. All

printouts that are not included in a report, citation or forwarded to the 377 SFS/S2R for use will be destroyed by shredding immediately. All printouts included in a report, citation or forwarded to 377 SFS/S2R will have CUI/LES printed on the top and bottom of each page. The primary and alternate TACs have sole responsibility for system management, training certification management and records keeping. TACs have the capability to reset passwords, unlock accounts and troubleshoot the system as required.

3.4.2.1. **(Added)** Training and certification will be conducted by fully certified operators. Access into Open Fox and Law Enforcement Agency Data System (LEADS) operating systems will be granted only by the primary or alternate TAC once a request is made by the individual's flight chief/section head in writing. Operators in training will have 45 calendar days to pass the on-line certification test once they receive their initial user name and password. Operators in training will be allowed a one-time 15 calendar day extension to complete certification. Additional training extensions must be filed in writing, and coordinated through the chain of command (e.g., S2, S3, S5) to the TAC including the reason for extension and a certification completion plan. A test failure may also receive a one-time 15 calendar day extension after the TAC receives a written extension request with remedial training. A second test failure will result in the individual being removed from the NCIC training/certification process. Additionally, all personnel receiving disciplinary action resulting in non-judicial punishment (or higher) within a 12 month period of account request will be denied access to the system. Other forms of disciplinary action will be considered in the decision to grant system access: Any action that puts the individual's reliability in question will be used as grounds to deny that person system access. The unit TAC makes final determination on all user access requests.

3.4.3.1. **(Added)** Only individuals with a username and password will be allowed to access the terminal. Operators will not allow other operators or uncertified personnel to use their profile. Operators in training will be supervised by a certified operator at all times until he/she receives full certification. Operators must be physically present at all times while logged into the system.

3.11. 377 SFS/S2R is designated as the sole releasing authority for Law Enforcement information. This means that ALL requests for SF generated information will be forwarded to S2R for evaluation. If information is clearly releasable, S2R will notify the appropriate Section to allow release (with appropriate PII/Privacy Act redactions). If information is not releasable, S2R will direct the requester to submit a FOIA request.

3.11.1. **(Added)** First party individuals involved in incident reports and investigative ROIs may receive a redacted copy of finalized reports without attachments. S2R will redact all Personally Identifiable Information **(**PII) of other parties to the report before release. Incident reports and investigative ROIs will not be released to second/third party individuals without a Freedom of Information Act (FOIA) request and approval from the SJA and the FOIA office.

3.17.1.1. **(Added)** S2R/S2I will coordinate with SJA before information from open investigations or operations level cases are provided to commanders/unit leadership.

4.5.5. 377 SFS/S3O (Police Services) will review the blotter daily. Flights will have 48 hours to accomplish corrections or request an extension. Extensions will be approved by the Operations Officer or Operations Superintendent who will notify 377 SFS/S2R of the delay. Once corrections are complete, Police Services will notify S2R who will final approve the blotter in AFJIS.

4.5.6.1. **(Added)** The following leadership positions/organizations are authorized to receive the official signed blotter:

4.5.6.1.1. **(Added)** Wing CCs, Deputy Wing CCs, Command Chief Master Sergeants, Wing Director of Staff, or equivalent leadership positions.

4.5.6.1.2. **(Added)** Group CCs, Deputy Group CCs, and Group Senior Leaders or equivalent leadership positions.

4.5.6.1.3. **(Added)** Selected members of the 377 ABW/SJA as determined by the 377 ABW/JA.

4.5.6.1.4. **(Added)** Selected members of Air Force Office of Special Investigation (AFOSI) Det 814 as determined by the Detachment CC/Special Agent in Charge.

4.5.6.1.5. **(Added)** The 377 SFS/CC is delegated the authority to approve distribution of the official signed blotter to other individuals/organizations. Request must be made in writing and include a justification.

4.5.6.1.6. **(Added)** Units will establish an organizational mailbox capable of receiving encrypted e-mail to receive the blotters

4.5.6.1.7. **(Added)** The 377 SFS/S3O will be responsible for providing blotter entries to organizations for incidents that fall under their program purview (e.g., SE, EO, FAP, CVS) within 24 hours (or the next duty day) of the incident.

4.6.2.5. **(Added)** Civilian personnel detained with outstanding warrants will be released to a local law enforcement agency (city, county, state police). Under no circumstances will SF transport to a local detention facility. Offenders may be detained for a reasonable amount of time while awaiting transport, but not to exceed 4 hours unless approved by the 377 SFS/CC. If a civilian law enforcement agency is unable or unwilling to take custody of the offender, consult with SJA as to the disposition of the offender and document the action in the Security Forces blotter. For reporting purposes IAW **Attachment 3**, use category code 11X (criminal) when an offender is turned over to local LE. Use category code 12X (non-criminal) for those instances when an offender is released because local LE did not respond.

4.6.4. **(Added)** A copy of the NCIC print out will be attached to all citations/incidents reports and forwarded to the 377 SFS/S2R.

4.12. **(Added)** The 377 SFS/CC will develop procedures for the issuance and enforcement of civilian and military protective orders.

5.15.2.7. **(Added)** The 377 SFS/CC Will:

5.15.2.7.1. **(Added)** Procure sufficient PPE to outfit and resupply unit requirements.

5.15.2.7.2. **(Added)** Ensure all squadron personnel are trained on the following:

5.15.2.7.2.1. **(Added)** The proper wear, use, maintenance, limitations, removal, and disposal of PPE.

5.15.2.7.2.2. **(Added)** Recognition/identification of possible illicit drugs and other hazards. How to recognize the form and determine the quantity of illicit drugs. How to recognize situations that may cause illicit drugs to enter the air. How to safely collect, handle, process, and store evidence that may be contaminated by illicit drugs. What the potential exposure routes are for illicit drugs.

How to recognize the signs and symptoms of poisoning from an illicit drug exposure. When and how to seek medical help. Decontamination procedures.

5.15.2.7.3. **(Added)** Develop a unit instruction establishing procedures for the following:

5.15.2.7.3.1. **(Added)** Training requirements, PPE utilization/use, procedures for conducting searches/inspections of vehicles, buildings, dormitories, offices, large containers, open areas, etc.

5.15.2.7.3.2. **(Added)** Security Forces Investigations (S2I) use of the TruNarc™ Narcotics Analyzer.

5.15.2.8. **(Added)** The 377 MSG/CEF will:

5.15.2.8.1. **(Added)** When requested by BDOC dispatch a unit to the incident capable of administering Naloxone to personnel in the event of an exposure to a narcotic substance.

5.15.2.8.2. **(Added)** In the event fentanyl or other dangerous substance is detected assume Incident Command and initiate a HAZMAT response.

5.15.2.8.3. **(Added)** Assist with decontamination of effected personnel as needed.

6.4.2.2.1.1. **(Added)** Civilian offenders, upon the direction of the Assistant United States Attorney (AUSA) or SJA, may be transported to the federal detention center to await arraignment. A minimum of two SF personnel will transport offenders. SF personnel will transport civilian offenders from the federal detention center to the Federal Court for arraignments if required. Avoid, to the maximum extent possible, any questioning to a civilian that will give rise to the perception or deliberate act of eliciting potentially incriminating statements.

6.4.2.2.2.1. **(Added)** Civilian personnel detained for criminal offenses will be detained for the minimum amount of time necessary to complete processing. The 377 SFS Operations Officer or Operations Superintendent must approve if an individual needs to be detained for longer than 4 hours. Personnel who, after consulting with the AUSA, are not to be transported to the Federal Detention Facility, will be released IAW **paragraph 6.4.2.2.2.4**.

6.4.2.2.2.2. **(Added)** Civilian personnel detained with outstanding warrants will be released to a local LEA if available. Under no circumstances will SF transport to a local detention facility.

6.4.2.2.2.3. **(Added)** Offenders detained with non-extraditable warrants will be released after their information is collected. Offenders detained with misdemeanor extraditable warrants may be detained for a reasonable amount of time while awaiting transport by a civilian LEA, but not to exceed 4 hours from the time of detention. Offenders with felony extraditable warrants may be detained for a reasonable amount of time while awaiting transport by a civilian LEA. If the offender has not been picked up within 4 hours consult with SJA as to the disposition of the offender. Document all actions in the SF blotter.

6.4.2.2.2.4. **(Added)** Disposition of offenders not released to a LEA**.** DoD, DOE or other base affiliated government employees will be released to a supervisor or agency representative if available. Dependents of active-duty military will be released to the sponsor or unit representative if the sponsor is not available. National Guard and military reservist not on Title 10 orders (not active duty) will be released on their own recognizance. All other civilians will be released on their own recognizance.

6.4.2.2.3.1. **(Added)** Juveniles and unimpaired, non-violent civilian offenders will NOT be placed in the holding cells. If audio/video surveillance is available, they may be secured in the

interview room while being processed. Otherwise, the offender will be escorted at all times by an on-duty SF member.

6.8.1. **(Added)** Once all evidence is removed and properly documented/accounted for, a DD Form 2506, Vehicle Impoundment Report, will be completed. Impounded vehicles will be released to a private impoundment company under the following circumstances:

6.8.1.1. **(Added)** Vehicles operated by personnel who are arrested for driving under the influence (DUI) of intoxicating liquors or drugs, have refused to submit to a breath test and/or blood test, have a blood alcohol level of .08 or higher, are otherwise deemed impaired, or are found by a Drug Recognition Expert (DRE) to be under the influence of drugs.

6.8.1.2. **(Added)** Operating a vehicle on the installation while driver's license is suspended/revoked. This provision extends to drivers who have had their installation driving privileges revoked or suspended.

6.8.1.3. **(Added)** When a driver or owner of the vehicle is in possession of illegal drugs/narcotics or, if there are passengers, the ownership of the illegal drugs/narcotics cannot be determined.

6.8.1.4. **(Added)** The vehicle operator is an unlicensed driver and there is no other licensed driver available to operate the vehicle.

6.8.1.5. **(Added)** The vehicle operator has outstanding warrants and no other driver is present.

6.8.1.6. **(Added)** Driver and/or vehicle is involved in a crime or is evidence of a crime.

6.8.1.7. **(Added)** Vehicle operator is cited for driving with no insurance.

6.9.6.1. **(Added)** The authority to void CVB Form 1805 for traffic offenses is delegated to the 377 SFS/CC. The SF member requesting the action will provide a written statement justifying the request. Offenders may not request the 377 SFS/CC to void the citation. The authority to void the CVB Form 1805 for criminal offenses is delegated to the DFC with coordination from the SJA.

6.9.6.2. **(Added)** CVB Form(s) 1805 can only be voided for cases of mistaken identity or obvious legal error. If the violation notice was processed and sent to the CVB or the forfeiture was paid by the offender, the violation notice can only be dismissed/refunded by the US Magistrate Court.

6.9.10.6.1. **(Added)** SJA upon consultation with the AUSA, New Mexico Children, Youth and Families Department (NM CYFD) (if applicable) and the DFC will recommend punitive or administrative actions for the 377 ABW/CC to consider, based on the seriousness of the offense and age of the juvenile.

6.10. **(Added)** The 377 SFS/CC will appoint VWAP coordinators from the 377 SFS/S3 in writing and provide the letter to the 377 ABW/SJA VWAP Coordinator. These coordinators will be responsible for the 377 SFG VWAP program.

6.10.4. **(Added)** The 377 SFS VWAP Coordinator, with concurrence of the 377 ABW/SJA, VWAP Coordinator will develop an attachment to the DD Form 2701 that provides the information required in paragraphs **6.10.4.3** and **6.10.4.4**.

6.10.4.

2 (Added) When requested, 377 SFS/S2R will generate the AFJIS summary report. The 377 SFS VWAP Coordinator will develop a tracking system to ensure all DD Forms 2701 are

properly accounted for and reported. The AFJIS report will be compared to the tracking system and discrepancies will be corrected.

6.12.1. **(Added)** Holding Cell Designation. A cell not equipped with a toilet/sink but located such that the fixtures are available in the building under escort, is considered a Holding Cell (commonly called an "H-Cell"). Optimally, this cell holds individuals up to eight-hours. The DFC can, for good cause and after consultation with the SJA, extend the eight-hours time limit.

6.12.2. **(Added)** Use of this cell is a temporary solution and will not exceed 24-hours. Specifications for this cell are the same as a confinement facility cell, minus the fixtures and laundry/shower, day room, and recreation yard as part of the physical plant. Note: Do not co-mingle in any manner pretrial detainees with post-trial inmates or with individuals detained for LE processing (e.g., DUI suspect, etc.).

6.12.3. **(Added)** (Added) Holding-cell use will be considered when a subject is suspected of having committed a crime and the suspect is violent, poses an escape risk, and presents a safety concern to LE Officers or to self. If detention is deemed necessary to preserve evidence and conduct further investigative steps, the office of the Staff Judge Advocate must be consulted. When the H-Cell is utilized, the SFS Operations Officer and the SFS/CC will be notified. At that time, the decision will be made to continue using the cell or utilize an alternate location that can still be monitored (i.e. a video-monitored interview room).

6.12.4. **(Added)** If a person is placed into the holding cell for more than two-hours, perform periodic checks (at least every 15 minutes) if closed circuit television is not available and log the checks on a DD Form 509, Inspection Record of Prisoner in Segregation. (T-1)

12.9. **(Added)** The 377 ABW/JA will notify the 377 SFS/S2R and 377 SFS/S2I when a CDI or Informal Inquiry conducted by a commander qualifies for criminal indexing. The 377 SFS/S2R will be responsible for ensuring the collection and submission of DNA and/or fingerprints is conducted and an AFJIS report is accomplished.

12.10.1. **(Added)** An AFJIS blotter entry and report will be accomplished when a DAF-affiliated person is incarcerated by civilian authorities, regardless of the nature of the offense. For NIBRS reporting, the report will be titled/categorized as the arresting offense. BDOC will request copies of associated paperwork/reports (arrest/booking, criminal complaint, etc) for inclusion in the case file.

12.10.2. **(Added)** SJA will notify S2R when jurisdiction over civil arrests is assumed by military authorities. S2R will generate a CC Action request IAW **paragraph 12.13.7.1**.

12.13.7. **(Added)** 377 SFS/S2R will send command/judicial action request to unit commanders for all incidents involving military offenders. In cases where the command action is proposed NJP or higher, return the form stating same. S2R will suspend the due date pending preferral of charges or offer of NJP.

12.13.7.

1 (Added) If a response is not received by the due date, a notice of late suspense memorandum will be sent by S2R establishing an additional 14-day suspense. If the additional suspense is not met a second notice of late suspense memorandum will be sent through the 377 SFS/CC with a courtesy copy to the next higher commander in the chain of command. Extensions can be granted on a case-by-case basis by the 377 SFS/CC.

12.13.7.2. **(Added)** Per AFMAN 71-102, even administrative actions taken in response to a criminal investigation must be reported to Security Forces and/or to the FBI. [CCs] are required to report their action to Security Forces IAW DoDI 5505.11, para. 2.2c, which requires DoD Component heads to "direct CCs and directors to provide the DCIO, or other DoD Law Enforcement Agency (LEA), all disposition data for cases investigated by a DCIO or other DoD LEA, in writing, within 5 business days of disposition, to include: (1) Any administrative, non-judicial punishment, or judicial action that occurs as a result of an investigation and (2) A decision to take no action." Administrative actions are required to be reported to CJIS (FBI) IAW DoDI 5505.11, para. 3.2d, which provides: "Adverse findings resulting from a summary court- martial, non-judicial proceedings pursuant to Article 15 of the UCMJ, administrative action, or discharge do not constitute criminal proceedings." CCs will have 5 duty days from the date action was taken to return the signed command/judicial action form to 377 SFS/S2R. If a response is not received by the due date a notice of late suspense memorandum will be sent by 377 SFS/S2R establishing an additional 5-day suspense. If the additional suspense is not met, a second notice of late suspense memorandum will be sent by the 377 SFS/CC with a courtesy copy to the next higher CC in the chain of command.

MICHAEL J. POWER, Colonel, USAF
COMMANDER KIRTLAND AIR FORCE BASE

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 33-322, *Records Management and Information Governance Program,* 23 Mar 2020

DAFI 31-101, *Integrated Defense (ID),* 24 Mar 2020

DAFMAN 31-103 Volume 1, *Law Enforcement Operations*, 1 May 2024

DAFMAN 31-103 Volume 2, *Investigations Program*, 1 May 2024

AFMAN 71-102, *Criminal Indexing*, 20 July 2020

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

AF Form 1297, *Temporary Issue Receipt*

AF Form 178*, Affidavit for Apprehension/Arrest*

DD Form 509*, Inspection Record of Prisoner in Segregation*

Abbreviations and Acronyms

377 SFS/S2I—377th Security Forces Squadron Investigations Section

377 SFS/S2R—377th Security Forces Squadron Reports and Analysis

ABW—Air Base Wing

AFJIS—Air Force Justice Information System

AFLETS—Air Force Law Enforcement Terminal System

AFOSI—Air Force Office of Special Investigation

AUSA—Assistant United States Attorney

CC—Commander

CUI—Controlled Unclassified Information

CVB—Central Violations Bureau

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DRE—Drug Recognition Expert

DUI—Driving Under the Influence

FOIA—Freedom of Information Act

HAZMAT—Hazardous Material

IAW—In Accordance With

ID—Integrated Defense

KAFB—Kirtland Air Force Base

LEADS—Law Enforcement Agency Data System

LEA—Law Enforcement Agency

LES—Law Enforcement Sensitive

MSG—Mission Support Group

NCIC—National Crime Information Center

NLETS—National Law Enforcement Terminal System

NM CYFD—New Mexico Children, Youth and Families Department

NMLETS—New Mexico Law Enforcement Terminal System

PA—Privacy Act

PPE—Personal Protective Equipment

PII—Personally Identifiable Information

RDS—Records Disposition Schedule

ROI—Report of Investigation

SFG—Security Forces Group

SJA—Staff Judge Advocate

SFS—Security Forces Squadron

TAC—Terminal Agency Coordinator

UCMJ—Uniform Code of Military Justice

VWAP—Victim/Witness Assistance Program

WSSS—Weapons System Security Squadron